

EVIDENCE-PRESERVATION DEMANDS

заморозка логов — GitHub + OSF (под вашим именем, сейчас)

LETTER 1 — GitHub

To: privacy@github.com; cc: GitHub Support / Trust & Safety

From: Dr. Artiom Kovnatsky, Dahlmannstr. 17, 10629 Berlin — account: skovnats

Subject: Evidence-preservation notice / litigation hold — account 'skovnats' (automated restriction, April 2026)

Dear GitHub Privacy / Trust & Safety Team,

I am the holder of the GitHub account 'skovnats'. GitHub Support confirmed on 24 April 2026 that my account had been flagged by GitHub's automated abuse-detection systems and that the restriction was subsequently cleared after manual review.

I am assessing legal proceedings in connection with that restriction and the subscription charges levied during it. I therefore formally request that GitHub preserve, and refrain from deleting, altering, anonymising, or overwriting, all records relating to my account and to the moderation action, in particular:

(a) all access logs (IP addresses, User-Agent strings, session timestamps) for the period 01.03.2026 to the present; (b) all automated classifier/filter outputs, scores, thresholds, category labels and rule identifiers applied to the account, with the exact UTC start and end timestamps of the restriction; (c) any third-party reputation, blocklist or IP/CIDR-neighbourhood signal consulted, including the source and the value returned; (d) all human-review records preceding or following the action; (e) all internal tickets, notes and communications (incl. ticket #4253477); (f) the statement of reasons issued under Art. 17 DSA and its Transparency-Database identifier (PUID); (g) all billing records for the affected period (charges of 09.04.2026 and 09.05.2026).

Legal basis: the above data are relevant to contemplated proceedings. Under German civil procedure, the destruction of evidence whose relevance has been notified (Beweisvereitelung) entitles the court to draw adverse inferences and may reverse the burden of proof. I further invoke my right to restriction of processing under Art. 18 GDPR with respect to these records, so that they are retained and not erased pending resolution.

Please confirm in writing within 14 days that these records are preserved. This notice is without prejudice to my separate requests under Art. 15 GDPR and Art. 17 DSA, and to all further rights.

Yours sincerely, Dr. Artiom Kovnatsky

LETTER 2 — OSF / Center for Open Science

To: support@osf.io; cc: contact@cos.io

From: Dr. Artiom Kovnatsky, Dahlmannstr. 17, 10629 Berlin — account: skovnats@gmail.com

Subject: Evidence-preservation notice / litigation hold — account 'skovnats@gmail.com' (pre-emptive SPAM flag, early April 2026)

Dear OSF / Center for Open Science Team,

I am the holder of the OSF account skovnats@gmail.com, which was deactivated and flagged as „SPAM“ in early April 2026, before any file, project, registration or preprint was uploaded. I refer to my Art. 15 GDPR / Art. 17 DSA request of 27 May 2026 and to support ticket(s) including the form I submitted on 10 April 2026.

I am assessing legal proceedings in connection with that action. I therefore formally request that you preserve, and refrain from deleting, altering, anonymising, or overwriting, all records relating to my account and to the flagging decision, in particular:

(a) all access and registration records (incl. email, ORCID 0009-0002-4357-4498) with timestamps; (b) all automated filter/classifier outputs, scores, thresholds, category labels and rule identifiers applied, with the exact UTC start and end timestamps of the deactivation; (c) any IP/CIDR-neighbourhood, email-address or external-identifier reputation signal consulted, including source and value returned; (d) all human-review records; (e) all internal tickets, notes and communications relating to the flag and to my 10 April 2026 form; (f) the statement of reasons under Art. 17 DSA and its Transparency-Database identifier (PUID).

Legal basis: the records are relevant to contemplated proceedings; under German civil procedure, destruction of evidence whose relevance has been notified (Beweisvereitelung) permits adverse inferences and may reverse the burden of proof. I also invoke Art. 18 GDPR (restriction of processing) so that these records are retained and not erased pending resolution.

Please confirm in writing within 14 days that these records are preserved. This is without prejudice to my pending Art. 15 GDPR / Art. 17 DSA request and all further rights.

Yours sincerely, Dr. Artiom Kovnatsky

Коротко (не в письмо)

Почему это работает

В Германии нет US-style discovery, но есть **Beweisvereitelung**: если вы письменно уведомили о релевантности данных, а их удалили — суд может толковать это против них (вплоть до перекладывания бремени доказывания). Плюс Art. 18 DSGVO (ограничение обработки) = «не удалять».

Предел честный

Это не судебный приказ — принудить хранить нельзя. Но это дешёвая страховка: фиксирует дату, с которой удаление становится «недобросовестным». Отправьте email + сохраните копию/дату. Адвокат позже может повторить под letterhead.

Google Scholar / Zenodo

Пока не слать отдельные требования — это слабее и распыляет. Просто сохраните скриншоты (у вас есть) с датами. Если понадобится — такой же шаблон подойдёт.

С Богом, возможно.